

SENATE BILL 968

By Southerland

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 204, relative to the state energy policy
council.

WHEREAS, this General Assembly resolved in 2023 for this State to develop an energy production plan in order to become an energy exporter; and

WHEREAS, President Trump has declared a national energy emergency; and

WHEREAS, this State must continue to build upon its long-standing partnership with the Tennessee Valley Authority, which has led the nation in effective and efficient generation of electricity using nuclear, gas, coal, and hydro-electric energy sources; and

WHEREAS, this State must implement a strategic plan for building and maintaining energy infrastructure that is scalable and robust enough to not only meet our current energy availability and production but to accommodate our ever-increasing future energy demands; and

WHEREAS, preparing for a nuclear power renaissance and maintaining a competitive advantage in all things nuclear, including nuclear manufacturing and nuclear energy, will require this State to maintain and build upon the nuclear energy resources in Oak Ridge and other parts of East Tennessee while developing traditional and emerging energy technologies; and

WHEREAS, it is vital that policymakers in this State understand the strengths, weaknesses, opportunities, and threats associated with our current energy sources and capabilities, as well as any future energy development and production; and

WHEREAS, the Tennessee energy policy council was reconstituted in 2024 to include subject matter experts from all segments of the energy production and delivery markets in order to ensure policymakers receive the best possible recommendations on all aspects of current and future energy production capabilities; and

WHEREAS, establishing a set of objectives for which the Tennessee energy policy council is annually responsible will help in the establishment and maintenance of an effective energy policy; and

WHEREAS, assigning the administrative, reporting, oversight, and accountability responsibilities jointly to the Tennessee department of economic and community development and the Tennessee department of environment and conservation will help ensure that policy suggestions safely, reliably, and effectively leverage current and emerging energy capabilities in this State; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-204-106, is amended by deleting the section and substituting:

(a) To facilitate the work of the council and for administrative purposes, the chair of the council shall assign the administrative oversight responsibilities jointly to the department of economic and community development and the department of environment and conservation.

(b) The council shall meet quarterly, with members to be physically present at a minimum of two (2) quarterly meetings each calendar year. Members may also participate by teleconference call. Emergency meetings may be called by the chair or upon petition by a majority of the council, with written notice being given to all members.

SECTION 2. Tennessee Code Annotated, Section 68-204-103, is amended by deleting subdivision (b)(1).

SECTION 3. Tennessee Code Annotated, Section 68-204-108, is amended by deleting the section and substituting the following:

(a) The council shall compile, compose, and publish an initial report by July 1, 2026, on recommendations of policy and actions needed in order to address this state's energy needs, including, but not limited to:

- (1) Energy source and production goals by capacity;
- (2) An analysis of each energy source's strengths, weaknesses, opportunities, and threats;
- (3) An assessment of the current capacity of each energy source against projected demand; and
- (4) An assessment of potential energy source extraction and delivery systems, emerging innovative energy sources, and energy storage.

(b) The reports must be:

- (1) Distributed electronically to all members of the energy, agriculture and natural resources committee of the senate and the committee of the house of representatives with subject jurisdiction over energy; and
- (2) Available on the department of economic and community development's and the department of environment and conservation's websites. The departments must jointly notify any person who has registered through the department's website by email of the report's availability.

(c) The departments must establish the frequency future reports will be distributed, with the longest interval between distributions being two (2) years.

SECTION 4. Tennessee Code Annotated, Section 68-204-104, is amended by deleting subdivision (d)(3) and substituting:

(3) In case of a vacancy in the membership on the council prior to the expiration of a member's term, a successor must be appointed within thirty (30) days of the

vacancy for the remainder of the unexpired term by the appointing authority who made the original appointment and in the same manner as the original appointment.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.